

**CLEESE v CALAVERAS CONSOLIDATED
FIRE PROTECTION DISTRICT**

25CV47808

**DEFENDANT CCFPD'S MOTIONS TO COMPEL
AMENDED DISCOVERY RESPONSES**

Jessica Cleese ("Plaintiff") brings this employment action against Calaveras County Consolidated Fire Protection ("CCFPD"), Aurelio Norte ("Norte"), and various John Does.

On August 11, 2025, CCFPD filed multiple motions to compel amended responses to various types of discovery. Subsequently, Plaintiff provided some amended responses leaving only two responses in dispute.

Given that many portions of the motions are now moot³, now before the Court is CCFPD's motion to compel responses only to 1) Request for Production of Document ("RPD") No. 24 and 2) Special Interrogatory ("SROG") No. 39.

I. Facts and Procedural Background

Plaintiff is a woman employed by CCFPD as a Firefighter and Emergency Medical Technician ("EMT") from July 4, 2022, to March 27, 2024. Defendant Norte is also an employee of CCFPD. Plaintiff alleges that on numerous occasions, Norte sexually assaulted her or threatened to sexually assault her. Plaintiff brings claims for assault, harassment, retaliation, and discrimination.

On March 19, 2025, CCFPD served Plaintiff with discovery. After multiple extensions, Plaintiff provided her responses on June 17, 2025. Thereafter, the parties engaged in attempts to meet and confer to amicably resolve the issues. (See e.g. Declaration of Keren Carrillo ("Carrillo Decl.") to MTC RPDs ¶¶ 6-10.)

³ In its Replies, CCFPD concedes the other requests are now moot.

II. Legal Standard

On receipt of a response to a Request for Production of Documents, the demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (CCP § 2031.310(a).)

Motions to compel further responses to RPDs must set forth specific facts showing good cause justifying the discovery sought by the request. (CCP § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

Where responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. (Code Civ. Proc. § 2030.300(a).)

Both motions must be accompanied by a meet and confer declaration in compliance with Code Civil Procedure section 2016.040. (Code Civ. Proc. § 2030.300(b); 2031.310(b)(2).) The Court finds that the meet and confer efforts were sufficient and this requirement is satisfied.

III. Discussion

RPD No. 24 and SROG No. 39 both seek information related to the amount of attorney’s fees Plaintiff claims to have incurred to date relating to this matter.

In response, Plaintiff provided predominately boilerplate objections, including that the request was overbroad and sought privileged material.

CCFPD argues that it is entitled to this information because she is demanding statutory attorney's fees as part of her claim for damages. CCFPD further argues that in general information related to billed attorney's fees are not categorically privileged and are routinely discoverable.

"When authorized by statute, awards of attorney's fees are expressly defined as costs, not damages." (*Elton v. Anheuser-Busch Beverage Group* (1996) 50 Cal.App.4th 1301, 1308 [citing Code Civ. Proc. § 1033.5 (a)(10)(B)].) In contrast, attorney's fees which are pled as part of a cause of action, such as for bad faith, may be considered damages. (*Byers v. Superior Court* (2024) 101 Cal.App.5th 1003, 1008.) This is because a claim for bad faith against an insurance company necessarily would require proof of damages which were proximately caused by the insurer's breach. (*Brandt v. Superior Court* (1985) 37 Cal.3d 813, 817.) In such a case, the attorney's fees are "an economic loss – damages – proximately caused by the tort." (*Byers*, supra at 1011.)

Here, Plaintiff asserts claims for statutory attorney fees pursuant to Gov. Code §12965(c)(6), and Lab. Code §1102.5(j). She is not seeking these fees as an element of any cause of action and they are considered costs. (Code Civ. Proc. § 1033.5 (a)(10)(B).) As such they are not discoverable because the case is not currently at the point where the Court is considering a motion for attorney's fees. (See e.g., *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325-1326 [opposing party is allowed to see and review attorney's fees that were billed and sought as part of a motion for fees after the case].)

Allowing opposing counsel to review attorney's fees which are statutorily designated as costs, also serves the additional concern about attorney-client privilege. Attorney billing invoices are not "categorically" considered privileged. (*Los Angeles County Bd. of Supervisors v. Superior Court* (2016) 2 Cal.5th 282, 288.) However, neither are attorney's fees always discoverable by the opposing party. (*Id.* at 297.) Indeed, "to the extent that billing information is conveyed 'for the purpose...of legal representation' – perhaps to inform the client of the nature of amount of work occurring in connection with a pending legal issue – such information lies in the heartland of the attorney-client privilege." (*Ibid.*) Even where the information is general, such as aggregate fees, "it may come close enough to this heartland to threaten the confidentiality of information directly relevant to the attorney's distinctive professional role. (*Ibid.*) For example, "swings in spending" could reflect an impending filing or change in strategy which could reveal professional intentions. (*Ibid.* ["real-time disclosure of ongoing spending amounts can indirectly reveal clues about legal strategy, especially when multiple amounts over time are compared."].)

Thus, even if the fees sought by Plaintiff were discoverable as “damages,” Plaintiff still reasonably and appropriately raised the objection that they are privileged.

Accordingly, the motions to compel further responses to RPD No.24 and SROG No. 39 are **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

VANCLEF v SUBARU OF AMERICA, INC, et al

25CV47968

DEFENDANT SUBARU'S DEMURRER

This case involves a dispute over a vehicle warranty dispute between Jordan E. Vanclef ("Plaintiff") and Subaru of America, Inc., ("Subaru"), Subaru of Sonora ("Sonora") and various John Does. Now before the Court is Subaru's demurrer to the Plaintiff's sixth cause of action for fraud.

I. Facts

On or about March 8, 2024, Plaintiff entered into a warranty contract with Subaru regarding a 2023 Subaru WRX, vehicle identification number JF1VBAF64P9819073 (hereafter "Vehicle"), which was manufactured and/or distributed by Subaru. (Complaint ¶ 7.) The warranty was broad and covered "bumper to bumper." (*Id.* ¶ 8, Ex. A.) Plaintiff has primarily used Vehicle for personal use. (*Id.* ¶ 9.) Within the applicable express warranty period defects and nonconformities to warranty manifested, including but not limited to, engine defects, transmission defects, and electrical defects. (*Id.* ¶ 12.)

Plaintiff alleges that Subaru knew, since prior to Plaintiff purchasing Vehicle, that the that the 2.4L engine and/or its related components installed in Vehicle have one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine (the "Engine Defect"). (Complaint ¶¶ 53, 59.) Plaintiff alleges that the Engine Defect is a safety concern and renders the vehicle undriveable (*Id.* ¶ 59.) and vehicle is now of *de minimus* value and seeks damages.

II. Legal Standard

"A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded." (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court